

GZ: DSB-D123.862/0008-DSB/2019 dated September 2, 2019

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DECISION

APPEAL

The Data Protection Authority decides on the data protection complaint of Michael A*** (complainant) dated November 29, 2018 (received on December 4, 2018) against the Public Prosecutor's Office N*** (respondent) regarding the violation of the right to information as follows:

1. The complaint regarding an alleged violation of the right to information is dismissed as unfounded.
2. The complainant's request to join the "proceeding to be initiated [...]" as a private party and victim with a provisional claim for damages of € 10,000.00" is rejected.

Legal bases: §§ 34 para. 5 in conjunction with 24 para. 1, 5 and 6, 31 para. 1, 36 para. 1, 36 para. 2 no. 7 lit. a, 42 para. 4 and 44 para. 1 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended; § 9 of the Official Liability Act – AHG, Federal Law Gazette No. 20/1949 as amended.

REASONING

A. Submissions of the parties and procedural history

1. In the complaint dated November 29, 2018, improved by submission dated December 12, 2018, the complainant summarized that he had submitted a request for information to the respondent under the GDPR. He attached his request for information dated October 31, 2018, as well as the response from the respondent dated November 16, 2019. In this, the respondent incorrectly asserts that the GDPR does not apply to it and that the Code of Criminal Procedure takes precedence. He joins the proceedings as a private party and victim with a provisional claim for damages of EUR 10,000.
2. In a submission dated February 13, 2019 (received on February 15, 2019), the respondent sent a letter addressed to the complainant to the Data Protection Authority, stating that it had complied with the request for information.
3. In a letter dated March 8, 2019 (received on March 12, 2019), the complainant stated that he had never received the letter addressed to him and that it also did not contain a second page with a signature or date. It had been created retroactively to feign proper provision of information. The alleged legal violation therefore still exists and is not remedied by the subsequently feigned fulfillment of the information obligation.
4. In its letter dated April 30, 2019 (received on May 9, 2019), the respondent stated that it refuted the complainant's claims that documents had been created only for show. The documents attached to the delivery process indicate that the addressee was apparently absent from the location at the time of delivery on February 15, 2019, and that the mail item had been left. Whether the mail item was collected cannot be assessed; it was not returned. However, a copy of a registered mail envelope addressed to the complainant was attached to the submission.
5. In a statement dated May 19, 2019 (received on May 23, 2019), the complainant stated the following: His request for information was delivered to the respondent on November 5, 2018, and on November 16, 2018, the Chief Public Prosecutor issued a letter stating that he would adhere solely to the provisions of the Code of Criminal Procedure and that everything else was irrelevant to him. Thus, his request was neither complied with within the statutory period of one month from delivery, nor was the right to extend the deadline to three months utilized by the respondent within this one-month period, which is why the violation is evident. There is a suspicion that the undated information letter, which the respondent sent to the Data Protection Authority as justification, is a cover-up action.
6. In a decision dated July 12, 2019 (GZ: DSB-D123.862/0007-DSB/2019), the Data Protection Authority informed the complainant that due to an error in the processing of the decisions dated February 19, 2019, and May 23, 2019 (GZ: DSB-D123.862/0001-DSB/2019, DSB-D123.862/0006-DSB/2019), only the first of two pages of the information had been transmitted to the complainant by the Data Protection Authority and provided the complete copy of the information to

the complainant.

7. In response, the complainant stated in his submission dated August 1, 2019 (received on August 6, 2019) that it is clear that the respondent had explicitly refused to provide the information. Only on the day the respondent drafted the submission to the Data Protection Authority was information provided, which had not been communicated to him by the respondent up to that point. The information was unlawful, as it had been explicitly refused, not delivered to the complainant by the information obligation holder, neither was the one-month deadline for the provision of information adhered to, nor was it indicated within a month that the extension due to a comprehensive request of two months would not be utilized. Furthermore, even if a three-month period had been invoked, the information would have been late. The request for information was received by the respondent on November 5, 2018, and thus the deadline expired on February 5, 2019.

B. Subject of the Complaint

From the submissions of the parties, it is evident that the subject of the complaint is whether the complainant's right to information was violated by the fact that the information was not provided by the respondent itself, but rather transmitted by the Data Protection Authority during the proceedings. Furthermore, the subject of the complaint is whether the complainant's right to information was violated because his request for information was answered in full, albeit late, but before the conclusion of the proceedings before the Data Protection Authority.

C. Findings of Facts

The complainant requested information about his personal data in a letter to the respondent dated October 31, 2018, which was received by the respondent on November 5, 2018.

Assessment of Evidence: This finding is based on the complainant's submission dated December 12, 2018, and the information provided by the respondent on February 13, 2019, in which it states that the request for information was delivered to it on November 5, 2018.

In a letter dated November 16, 2018, the respondent informed the complainant that the right to information regarding data processed in criminal proceedings is governed by the provisions of the Code of Criminal Procedure (StPO) and that information or access to a file can only be granted if the respective procedural prerequisites are met.

Assessment of Evidence: This finding is based on the letter from the respondent to the complainant dated November 16, 2018, which was submitted by the complainant in his submission dated November 29, 2018.

During the ongoing proceedings, the respondent sent information by post to the complainant, which was not collected. In this information, the complainant was informed that there is a dataset concerning him in the Judicial Automation (VJ) in the Register for Judicial Administrative Matters (JV) under the number *3* 000 Jv 5*1/18h (formatting not reproduced 1:1):

“*3* 000 Jv 5*1/18h *4 05.11.2018 1. ES A*** Michael A A-**** Request for information under the Data Protection Act.”

Furthermore, the complainant was informed that he appears as a suspect in 12 specifically mentioned proceedings and can access the files of these proceedings.

Assessment of Evidence: This is evident from the comprehensible statements of the respondent as well as a copy of the information dated February 13, 2019, along with the registered mail envelope addressed to the complainant, which was submitted and on which the handwritten note “absent until 20.2.” was noted.

The Data Protection Authority granted the complainant the right to be heard pursuant to § 24 Abs. 6 DSG and informed him to state reasons if he still considered the alleged violation of rights to be unresolved. However, due to a clerical error, only the first page of the provided information was attached to the decision, which does not bear a date or signature from the respondent.

Assessment of Evidence: These findings are based on the submissions of the complainant in his statement dated March 8, 2019.

The complete letter (including the second page) was transmitted to him by the Data Protection Authority with the decision dated July 12, 2019.

The complainant did not contest the content of the information transmitted by the Data Protection

Authority.

****Assessment of Evidence:**** The complainant did not provide any information in his statement dated August 6, 2019, indicating that he considers the information provided by the respondent to be deficient or incomplete.

****D. In legal terms, it follows:****

****Regarding Item 1:****

****D.1 On the jurisdiction of the Data Protection Authority****

According to § 31 para. 1 sentence 1 of the Data Protection Act (DSG), the Data Protection Authority is established as the national supervisory authority for the scope of application specified in § 36 para. 1 DSG. According to § 31 para. 1 sentence 2 DSG, the Data Protection Authority is (however) not responsible for overseeing processing activities carried out by courts in the course of their judicial functions. Directive (EU) 2016/680 allows Member States, in Article 45 para. 2, to exempt "other independent judicial authorities" from supervision by supervisory authorities in the context of judicial activities.

Public prosecutors are subject to supervision by the Data Protection Authority due to their obligation to follow instructions, as they are not independent judicial authorities (see the findings of the Federal Administrative Court (BVwG) from April 12, 2019, GZ: W101 2187447-1/7E and from July 3, 2019, GZ: W256 2210459-1/7E).

Thus, the jurisdiction of the Data Protection Authority in the present case is to be affirmed.

****D.2 On the merits****

The scope of the 3rd main part of the DSG only includes data processing by a "competent authority," i.e., by an authority that is (generally or specifically) entrusted with tasks related to the purposes specified in § 36 para. 1 leg. cit. The public prosecutor's office is a competent authority within the meaning of § 36 para. 2 no. 7 lit. a DSG, whose primary responsibilities and tasks serve the purposes mentioned in § 36 para. 1 leg. cit. (see also Bresich/Dopplinger/Dörnhöfer/Kunnert/Riedl, Data Protection Act, § 36, Rz. 14; see also Schmidl, in Gantschacher †/Jelinek/Schmidl/Spanberger, Commentary on the Data Protection Act, § 36 Anm. 5 with references).

In the context of the proceedings, the complainant's right to information is thus governed by § 44 DSG.

****D.2.a Regarding the complainant's assertion that the information was not delivered to him by the respondent****

The aim of a complaint procedure based on § 44 DSG is to obtain information about the processing of personal data by the respondent. The Austrian legislator has created the possibility for controllers in § 24 para. 6 DSG to remedy alleged legal violations until the conclusion of the proceedings before the Data Protection Authority.

§ 24 para. 6 DSG stipulates that a respondent can remedy the alleged legal violation retroactively until the conclusion of the proceedings before the Data Protection Authority by complying with the complainant's requests.

The wording of § 24 para. 6 DSG does not indicate that the response to a request during the proceedings before the Data Protection Authority must necessarily be made to the complainant. A claimed legal violation can also be remedied retroactively by transmitting this response to the Data Protection Authority, which then forwards the letter to the complainant as part of the right to be heard. This is clarified by a comparison with the old legal situation under the DSG 2000, which explicitly required a response to the complainant. § 31 para. 8 first sentence leg. cit. stated:

"A respondent against whom a complaint has been filed due to violations of rights under §§ 26 to 28 can remedy the alleged legal violation until the conclusion of the proceedings before the Data Protection Authority by responding to the complainant in accordance with § 26 para. 4 or § 27 para. 4." The phrase "by responding to the complainant" is no longer included in the first sentence of § 24 para. 6 DSG, which is why the Data Protection Authority now considers it sufficient for a remedy in the sense of § 24 para. 6 DSG that the requested information is ultimately delivered to the complainant by the Data Protection Authority during the proceedings as part of the right to be heard.

The purpose of § 24 para. 6 DSG is to give the complainant the opportunity to respond to the respondent's reaction and to provide reasons why he still considers the originally claimed legal

violation to be unresolved. This purpose is not thwarted by the fact that the response to his request is communicated to him by the Data Protection Authority rather than by the respondent itself. Thus, the complainant's interest in legal protection remains preserved.

The complainant is thus not violated in his right to information by the fact that the information granted to him was not delivered by the respondent itself, but by the Data Protection Authority on July 12, 2019. It should not be overlooked that the respondent had also directly transmitted the requested information to the complainant, but the delivery was not possible due to the complainant's absence from the location.

D.2.b Regarding the complainant's assertion that the information was provided to him late

The complainant submitted his request for information to the respondent on November 5, 2018.

Therefore, the one-month period of § 42 para. 4 DSG ended on December 5, 2018. The request for information from the complainant was not fully complied with within the period of § 42 para. 4 DSG, as the respondent referred the complainant to the provisions of the StPO in a letter dated November 16, 2018. The information was thus provided late.

Regarding the requests to establish the non-provision of information by the respondent prior to the filing of the complaint, as well as the late provision of information, it should be noted that from § 34 para. 5 in conjunction with § 24 DSG, only the right to file a complaint with a supervisory authority can be derived, thereby enabling the enforcement of subjective rights – if necessary, by means of an official performance order. However, a right to establish that the information was provided too late cannot be derived from this provision (see in this regard the comparable legal situation under DSG 2000 in the ruling of the Administrative Court of September 27, 2007, file no. 2006/06/0330, with references, as well as the decision of the Data Protection Authority, GZ: DSB-D123.223/0007-DSB/2018).

In this context, the complaint was to be dismissed accordingly.

D.2.c Regarding the completeness of the provided information

Even if the complainant no longer criticized the content of the provided information, the Data Protection Authority still considers it necessary to address this: § 44 para. 5 DSG stipulates the priority of legally defined rights of access – such as the right to inspect files – over the right to information. Therefore, only the so-called "data protection legal surplus," meaning those data that cannot be determined through file inspection, is to be informed about.

In the provided information, the respondent cites the data record that is stored in the VJ. Furthermore, it refers to a total of 12 specifically designated proceedings in which the complainant was a party and can therefore exercise his right to inspect the files.

The respondent has thus fully complied with the request for information.

Regarding point 2:

Regarding the complainant's assertion that he joins the proceedings as a private participant with a claim for damages of EUR 10,000: There is no jurisdiction of the Data Protection Authority regarding the claim for damages raised by the complainant in the context of official liability. Official liability matters must be asserted before civil courts.